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Great Falls Tribune (Great Falls, Montana) · 15 Mar 1997, Sat · Page 1

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Today's forecast for Great Falls. Not as cold; increasing clouds. Details on 6A

High 25° Low 18°

Great Falls TRIBUNE

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Saturday, March 15, 1997 Great Falls, Montana No. 305 — 112th Year 50¢

For two Pitzers, 'long path of destruction' ends in state pen

Youngest brother fulfills sentence, released from jail

By MICHAEL W. BABCOCK
Tribune Staff Writer

Eight months after a fight in a downtown alley left one man dead, another hurt and three brothers behind bars, Friday brought a closure of sorts.

In a Great Falls courtroom, the grieving family of Jeffrey Spurgin saw brothers Mark, Matthew and Nathan Pitzer come square with the law.

During an intense, two-hour series of court hearings, the brothers were sentenced and the Spurgin family told them face-to-face how the death of Jeffrey Spurgin changed their family forever.

Spurgin

"There is a 9-year-old girl who doesn't have a father now and there is another single mother," said Helen Spurgin, Jeffrey's mother and owner of the H. H. Stanley insurance company. "There wasn't a day he wasn't the first thing I thought of in the morning and the last thing at night.

"There were seven words at 2:30 a.m. on July 4th when the county sheriff said, 'Your son's been killed in a homicide.'

"My son was also my business partner, and going to work has been very difficult. Everything in the office reminds me of him."

She said she has watched the Pitzers through every court hearing, and it doesn't appear to her that they feel any remorse.

"You may have had unfortunate childhoods. A lot of people have. But you have choices. I've paid the ultimate price — the life of my son."

— Helen Spurgin, mother of beating victim, Jeff Spurgin

See PITZERS, BACK PAGE

The sentences

■ Nathan Pitzer, 24: Six months in jail and a $500 fine for made-meanor assault. He has served more than that and was released Friday.

■ Mark Pitzer, 27: 20 years in prison with no parole for at least 10 years for negligent homicide and being a persistent felony offender; 10 years for felony assault, all concurrent. Following his release, boot camp or transition center; vocational training, a steady job; chemical dependency and mental health treatment; 300 hours of community service; restitution of $5,659 to the Spurgin family.

■ Matthew Pitzer, 29: 10 years in prison, five suspended, for accountability to felony assault. $2,000 in restitution to James Fendrick or the victims of crime fund. Credited with 248 days already served. He must register as a violent offender with the law wherever he lives, undergo chemical dependency treatment at his own expense.

Colorado threatens sanctions on cattle

By Tribune staff
and The Associated Press

DENVER — Colorado cattle ranchers say they will seek sanctions against cattle from Montana, Wyoming and Idaho unless federal officials begin managing diseased bison and elk in Yellowstone National Park.

But the head of the Montana Stockgrowers Association said he is hopeful that actions can be taken to keep Colorado and other states from resorting to such measures.

And a Wyoming official said Friday that he had struck a deal to keep sanctions against his state's cattle at bay for now.

Colorado's $2 billion cattle industry, declared brucellosis-free two years ago, is "prepared to take such actions" against cattle from Yellowstone's border states, the Colorado Cattlemen's Association said in a letter mailed Thursday to federal wildlife and agriculture officials.

BRUCELLOSIS

■ Animal advocacy group repeats call to stop killing of bison / 5A

The association said that unless federal agencies act, it will demand that cattle from those states be quarantined and tested before crossing state borders. The group also could demand that the Colorado state veterinarian impose restrictions on out-of-state beef.

"We are prepared to protect our own 'brucellosis-free' status, which we have worked so hard and long for here in Colorado," the letter said. "We hope this situation will never occur, and we recognize the tremendous adverse economic impact that such actions will have on the cattle industries within those states."

But MSGA executive director Jim Peterson said Friday that Oregon officials may withdraw that state's recent directive prohibiting importation of Montana cattle that have not been tested for brucellosis.

Peterson said Montana's state

See CATTLE, 5A

Crowns on the line

Boys' State B
Fairfield Eagles will face Glasgow Scotties for title in Bozeman / 1S

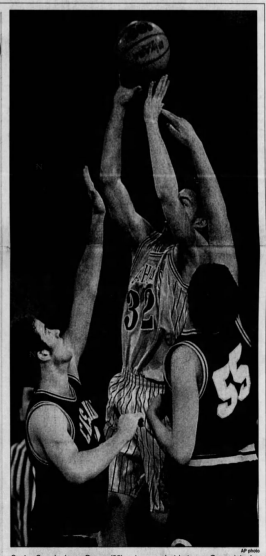
Boys' State C
Cascade continues run, meets Saco in championship game / 1S

NCAA women
Lady Griz tangle with Texas Tech in late-night matchup in California / 1S

NCAA men
No. 2 seed South Carolina upset in first-round game / 4S

Girls' State AA
Great Falls High still has shot at trophy at state meet in Billings / 1S

Girls' State A
Lewistown in championship bracket in volleyball in Belgrade / 1S



AP photo

Seeley-Swan's Jesse Boone (32) puts up a shot between Cascade's Jay Lewis (52) and Kris Harris in first half action of the semifinal round of the Montana State C Basketball Tournament in Billings Friday. Cascade won 74-59. Story on 1S.

Panel votes 1 percent hike for education

Racicot, education leaders complain increase too small

By BOB ANEZ
Associated Press Writer

HELENA — Montana's schools should get a $13.9 million increase in state aid for the next two years, a legislative committee decided Friday.

The bill containing the money was approved by Republican-controlled House Appropriations members on a nearly party-line vote.

Democrats objected to the level of funding as inadequate in the face of rising education costs and a four-year refusal of lawmakers to give schools any increase beyond what was needed to handle growing enrollment.

Those supporting the bill said it was all the state can afford.

House Bill 47 contained less money Thursday when the committee deadlocked in passing the measure. Members added another $1.7 million Friday before sending the bill to the House floor for debate.

The bill gives a 1 percent annual increase in state funding per student and a 4.7 percent increase in the aid for each school district in 1998.

The support for each high school student would increase from $4,680 to $4,726 and the per-student rate in elementary districts will rise from $3,343 to $3,376.

The bill contains about $700,000 less than Gov. Marc Racicot's request and is $25 million below what education leaders want.

Neither Racicot nor state Superintendent of Public Instruction Nancy Keenan were satisfied with the amount of money in the bill.

"I don't think that is the most constructive and fair approach to fund schools in the state of Montana," the governor said. "We just don't think we're where we need to be."

While inflation pushed up school costs, 5.66 percent in the last two years, school district budgets grew 3.28 percent and spending per student increased 3.85 percent, Racicot said.

"We're not keeping up with inflation in our ... schools," he said. "We have said from the beginning that we have to reach as far as we can to increase the schedules because we haven't done so since 1993."

■ Property tax issue as clear as mud / 1M

■ Day 56 at the Montana Legislature / 3M

Keenan said, "It's still not enough. It still doesn't restore us to where we were in 1991."

She insisted forecasts of state government revenue show the money is available for the $39 million increase in state support sought by education leaders.

"If they do the right thing and listen to their constituencies back home, they will fund it at that level," said Keenan, a Democrat.

She said schools have never recovered the money cut by a 1993 special legislative session that met to deal with a big budget deficit.

But House Speaker John Mercer, R-Polson, said schools cannot get a larger increase without taking money from other programs. More state aid for schools will require trimming proposed budgets of the university system, corrections or social services, he said.

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Mon, Dec 14, 2020

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